

STATE OF NEW YORK

5410--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 13, 2025

Introduced by M. of A. REILLY, NOVAKHOV, DeSTEFANO -- read once and referred to the Committee on Transportation -- recommitted to the Committee on Transportation in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the highway law, in relation to the creation of an exception on the Korean war veterans parkway in Richmond county for the use of certain commercial vehicles

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3.4 of section 349-c of the highway law, as
2 amended by chapter 453 of the laws of 2008, is amended to read as
3 follows:
4 3.4. The state shall proceed with the construction of a section or
5 sections of [~~said~~] such system after designs, plans, specifications and
6 estimates of cost thereof have been completed and approved by the city
7 and the commissioner of transportation, and the necessary property has
8 been acquired. The city may, however, elect to construct such section or
9 sections at its own expense in the manner provided by the city charter
10 or otherwise. Upon the completion by the state of a section or sections
11 of parkways constructed by the state in the city of New York, the
12 commissioner of transportation shall by official order transfer juris-
13 diction over the central express artery and adjacent landscape areas and
14 over adjacent service roads to the city of New York. All such parkways,
15 excepting such service roads shall be maintained by the city department
16 of transportation as parkways restricted to pleasure vehicles and with-
17 out access except at designated points, except that the city department
18 of transportation may adopt a rule permitting the use of a portion of
19 the Grand Central parkway between the Robert F. Kennedy bridge and the
20 western leg of the Brooklyn-Queens expressway and permitting the use of
21 the Korean war veterans parkway in Richmond county by single unit

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD08822-02-6

1 commercial vehicles having no more than [~~three~~] two axles and [~~ten~~] six
2 tires. Parkway service roads shall be open to mixed traffic. Upon the
3 completion of a section or sections of expressways including incidental
4 service roads constructed by the state in the city of New York, the
5 commissioner of transportation shall transfer jurisdiction to the city
6 of New York. The provisions of this article in regard to design and
7 construction shall apply also to reconstruction of a section or sections
8 of the state arterial system.
9 § 2. This act shall take effect immediately.